

First. Where the fund for the fines is pointed out.

1. **How to be levied out of "rents, issues, and profits," where the leases are for years.** — If there be an express trust to provide the fines for renewals out of the "*rents, issues, and profits*," and the leaseholds are *terms of years not determinable on lives*, so that the times of renewal can * be [*367] certainly ascertained, it will be the duty of the trustees to lay by every year such a proportion of the annual income as against the period of renewal will constitute a fund sufficient for the purpose (a).

2. **Fines to be levied out of rents and profits, or by mortgage.** — If the trust be to levy the fines for renewal out of the "*rents, issues, and profits, or by mortgage*," it was held in a case before Sir J. Leach that the annual rents only would in the first instance be applicable, for he considered the authority to mortgage not as making it optional with the trustees whether they should or not affect the interests of the remainderman, by throwing the charge of the renewal upon the *corpus* of the property, but as given for the protection of the *cestuis que trust* in case the amount of the fine should not be otherwise forthcoming (b), and intimated that should the trustees be under the necessity of mortgaging, the Court would call back from the party in possession the amount of the incumbrance thus temporarily incurred (c). However, in the later case of *Jones v. Jones* (d), where the trustees were empowered to levy the fines "*by and out of the rents, issues, and profits, or by mortgage*, or by such other ways and means as should be advisable," the Court, after observing that to levy the fines from the rents would throw them on the tenant for life, while a mortgage would be oppressive to the remainderman, declined to give any opinion whether the trustees might not, had they exercised their discretion, have determined upon whom the burthen should fall; but as the trustees had not exercised their discretion, it was held that

(a) *Lord Montfort v. Lord Cado-gan*, 17 Ves. 485; S. C. 19 Ves. 635; see *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 121; *Blake v. Peters*, 1 De G. J. & S. 345.

(b) *Milsintown v. Earl of Port-*

more, 5 Mad. 471; and see *Milles v. Milles*, 6 Ves. 761.

(c) 5. Mad. 472; and see *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 121, 123.

(d) 5 Hare, 440.